



SPONSOR: Sen. Huxtable & Sen. Pettyjohn & Rep. Snyder-Hall &
Rep. Hilovsky
Sen. Hansen; Reps. Bolden, Lambert, Shupe

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 176

AN ACT TO AMEND TITLE 9 OF THE DELAWARE CODE RELATING TO BUILDING PERMIT FEES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 63, Title 9 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 6305. Fees.

4 (a) The fees for issuing permits shall be determined by the County Council of Sussex County.

5 (b) The County may add a surcharge on any application for a building permit, in an amount not greater than 1.25%
6 of the construction value applicable to the building permit application, to provide funding for the local share of any school
7 capital construction program that has received a Certification of Necessity from the Secretary of Education of the
8 Department of Education pursuant to § 7510 of Title 29, except no surcharge may be added to an application for a building
9 permit with a construction value of \$30,000 or less, if the application is submitted after the issuance of the original
10 certificate of occupancy.

SYNOPSIS

This Act allows Sussex County to apply an impact fee to building permits within the respective school district for the purpose of collecting funding for the local share of school capital construction programs.

Author: Senator Huxtable